

POSH POLICY & PROCEDURE

The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act 2013

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Policy

- M/s GAPBLUE SOFTWARE LABS PVT LTD fosters an equal opportunity to all employees and is committed to create a healthy working environment that enables employees to work without fear of prejudice, gender bias, and sexual harassment.
- The Company also believes that all employees of the Company have the right to be treated with equality, honor and dignity.
- Sexual harassment at the workplace or other than work place involving employees is a grave offence as well as serious misconduct and is, therefore, punishable.

Scope & Effective Date

1. This Policy extends to all classes of employees of the Company and is deemed to be incorporated in the service conditions of all employees and comes into effect immediately.

2. "Sexual harassment" includes one or more of the following unwelcoming acts or behavior;

- (i) Physical contacts or advances; or
- (ii) A demand or request for sexual favors; or
- (iii) Making sexually colored remarks; or

(iv) Showing pornography; or

(v) Any other unwelcome physical, verbal or non-verbal conduct of sexual nature.

3. The following circumstances, among other circumstances, if it occurs or is present in relation to or connected with any act or behavior of sexual harassment may amount to sexual harassment: -

(i) Implied or explicit promise of preferential treatment in his/her employment; or

(ii) Implied or explicit threat of detrimental treatment in his/her employment; or

(iii) Implied or explicit threat about his/her present or future employment status; or

(iv) Interference with his/her work or creating an intimidating or offensive or hostile work environment for him/her; or

(v) Humiliating treatment likely to affect his/her health or safety

4. This Policy will be applicable to all allegations of Sexual Harassment by an Employee against another Employee, irrespective of whether Sexual Harassment is alleged to have taken place within or outside M/s GAPBLUE SOFTWARE LABS PVT LTD.

(i) "Employee" means any person on the rolls of the Company including those on deputation, contract, temporary, part-time, or working as Advisors/Consultants.

(ii) "Complainant"/ "Aggrieved Employee" means any person who has lodged sexual harassment complaint against the respondent.

(iii) "Respondent" means any person against whom a complaint of sexual harassment has been lodged.

6. Constitution of Internal Complaints Committee

(i) An Internal Complaints Committee ("ICC") has been constituted by the Management to take cognizance and redress/inquire about

complaints of Sexual Harassment. The composition of the Committee is as follows:

(ii)

Committee	
Presiding Officer	Sreelakshmi Aravind
Member	Smitha Nandakumar
Member	Sumitha Chandran
Member	Jobin Mathew
External social welfare consultant	Adv.Seethal.S

(iii) MD/Director & Head HR is authorized to name the replacements in the ICC.

(iv) A quorum of 3 members is required to be present for the proceedings to take place. The quorum shall include the Presiding Officer, at least two members; one of them shall be a lady.

6. Power of Internal Complaints Committee

The ICC shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 when trying a suit in respect of the following matters, namely: -

- (a) summoning and enforcing the attendance of any person and examining him on oath;
- (b) requiring the discovery and production of documents; and
- (c) Any other matter which may be prescribed.

7. Removal of Internal Complaints Committee

The Presiding Officer / Member of the Internal Complaints Committee shall be removed in case he / she;

- (i) She has been convicted for an offence or an inquiry into an offence under any law for the time being in force is pending against him/her; or
- (ii) Has been found guilty in any disciplinary proceedings or a disciplinary proceeding is pending against him/her; or

- (iii) Has so abused his/her position as to render his continuance in office prejudicial to the public interest;

Where ever a member has been removed from the ICC, a fresh nomination shall be made in accordance with the provision of the section to fill up the vacancy.

8. Redressal Process

- (i) Any Aggrieved Employee may make, in writing, a complaint of sexual harassment at workplace to the ICC .within 3 months from the date of incident and in case of a series of incidents within 3 months from the date of last incident.
- (ii) Where such complaint cannot be made in writing, the Presiding Officer or the member shall render all reasonable assistance to the Aggrieved Employee for making the complaint in writing.
- (iii) Where the Aggrieved Employee is unable to make a complaint on account of his/her physical or mental incapacity or death or otherwise, his/her legal heir or such other person as may be prescribed may make a complaint under this provision.
- (iv) The Committee upon receipt of the Complaint shall try to settle the issue/case between complainant and respondent through conciliation before the enquiry of the case. In case, the Aggrieved Employee is a woman, such conciliation will be in accordance with the provisions of Section 10 of the Act.
- (v) In case the settlement is arrived between the complainant and the respondent, the ICC shall record the settlement so arrived and forward the same to MD & Head HR to take action as specified in the recommendation.
- (vi) The ICC shall provide the copies of the settlement recorded to the complainant and respondent. Where a settlement is arrived, no further inquiry shall be conducted by the ICC.

9. Inquiry Process

- (i) In case the settlement is not arrived by conciliation, ICC shall immediately proceed with the Inquiry and communicate the same to the Complainant and respondent.
- (ii) The ICC shall prepare and hand over the Statement of Allegation to the respondent and give him/her the opportunity to submit a written explanation if she/he so desires within 7 days of receipt of the same.
- (iii) The Complainant shall be provided with a copy of the written explanation submitted by the respondent.
- (iv) If the Complainant or the respondent desires any witness/es to be examined, they shall communicate in writing to the Committee the names of witness/es that they propose to call.
- (v) If the Complainant desires to tender any documents by way of evidence before the Committee, she/he shall supply original copies of such documents. Similarly, if the respondent desires to tender any documents in evidence before the Committee he/she shall supply original copies of such documents. Both shall affix his / her signature on the respective documents to certify these to be original copies.
- (vi) The ICC shall call upon all witnesses mentioned by both parties.
- (vii) The ICC shall provide every reasonable opportunity to the Complainant and respondent, for putting forward and defending their respective case.
- (viii) The ICC shall complete the "Inquiry" within a period of 90 days and communicate its findings and its recommendations for action to the Managing Director & Head of HR without any prejudice or biased within 10 days from the completion of the inquiry.
- (ix) The report of the ICC shall be treated as an inquiry report on the basis of which an erring employee can be awarded appropriate punishment straight away without any further procedure of disciplinary action.

10. Decisions of ICC

- (i) In case ICC arrives at the finding that allegations are not proved .It shall recommend to the MD/Directors & Head Of HR that no action is required to be taken in the matter.

- (ii) In case ICC arrives at the finding that the allegation against the respondent has been proved it shall recommend to MD/Directors and Head of HR of the Company for Suitable action as deemed fit for the matter leading to termination of the service of the employee.

11. OTHER POINTS TO BE CONSIDERED

- (i) During the pendency of an inquiry, on a written request made by the Aggrieved Employee, in case such aggrieved employee is a woman and the respondent is a man, ICC may recommend the MD & Head of HR to-

- (a) Transfer the aggrieved woman/man or the respondent to any other workplace; or

- (b) Grant leave to the aggrieved woman/man up to a period of three months; or

- (c) Grant such other relief to the aggrieved woman/man as may be prescribed.

- (ii) The leave granted to the aggrieved woman under the foregoing provision shall be in addition to the leave he/she would be otherwise entitled.

- (iii) The ICC may recommend to the Managing Director & Head of HR action which may include transfer or any of the other appropriate disciplinary action leading to termination of services also.

- (iv) The management shall provide all necessary assistance for the purpose of ensuring absolute, effective and speedy implementation of this policy.

- (v) Where sexual harassment occurs as a result of an act or omission by any third party or outsider, TPC (Third party consultant) shall take all steps necessary and reasonable to assist the affected person in terms of support and preventive action.

- (vi) The ICC will analyze and put up report on all complaints of this nature at the end of the year for submission to Managing Director.

- (vii) In case the ICC finds the degree of offence coverable under the Indian Penal Code, then this fact will be mentioned in its report and appropriate action will be initiated by the Management, for making a Police Complaint.

12. Exception:

Any exception/ deviation to the policy guidelines has to be approved by MD/Directors

13. (a) As per Prevention of Sexual Harassment Act, 2013, the reports to be submitted by the employer:

1. It is the duty of the ICC to submit an annual report, which includes the number of cases filed/disposed of every calendar

(b) Preparation of Annual Report:-The annual report which the complaint committee shall prepare under section 21, shall have the following details:-

- i) Number of complaints of Sexual harassment received in the year
- ii) Number of complaints disposed of during the year
- iii) Number of cases pending for more than ninety days,
- iv) Number of workshops or awareness program against sexual harassment carried out;
- v) Nature of action taken by the employer.

13. Review:

Human Resources would be responsible to verify the effectiveness of the policy once in a year.